

		Based on the foregoing, the Court finds the judgment has not been satisfied and the motion is DENIED. ROI to give notice.
9	Pinner Construction Company vs Pinner 2023-01324438	Defendants John Pinner and Marilyn Pinner Motion for Anti-SLAPP Defendants John and Marilyn Pinner's (Pinner's) special motion to strike the complaint of Plaintiff Pinner Construction Company (PCC) under <i>Code of Civil Procedure</i> section 425.16 is GRANTED. Defendants' request for judicial notice of the complaint in OCSC Case No. 2022-01288013 is granted. Plaintiff's objections to the declaration of Defendant Thomas H. Edwards (Edwards) are overruled in their entirety. <i>Equilon Enterprises v. Consumer Cause, Inc.</i> (2002) 29 Cal.4th 53, 67, holds: "[W]e may summarize a court's task in ruling on an anti-SLAPP motion to strike as follows. Section 425.16, subdivision (b)(1) requires the court to engage in a two-step process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant's burden is to demonstrate that the act or acts of which the plaintiff complains were taken 'in furtherance of the [defendant]'s right of petition or free speech under the United States or California Constitution in connection

	with a public issue,’ as defined in the statute. (§ 425.16, subd. (b)(1).) If the court finds such a showing has been made, it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. Under section 425.16, subdivision (b)(2), the trial court in making these determinations considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” Defendants move to strike PCC’s causes of action in the complaint for (1) intentional interference with prospective economic relations, and (2) negligent interference with prospective economic relations. First Prong – Protected Activity “The sole inquiry under the first prong of the anti-SLAPP statute is whether the plaintiff’s claims arise from protected speech or petitioning activity. [Citation.] Our focus is on the principal thrust or gravamen of the causes of action, <i>i.e.</i>, the allegedly wrongful and injury-producing conduct that provides the foundation for the claims.” <i>Castleman v. Sagaser</i> (2013) 216 Cal.App.4th 481, 490–491. The basis for PCC’s complaint is a letter from Defendant Edwards, writing as counsel on behalf of the Pinner, addressed to the Chief of Facilities of Los Angeles Unified School District (LAUSD). The January 13, 2023, letter (LAUSD Letter) states the following: “I represent John and Marilyn Pinner, who were the owners of Pinner Construction Company, Inc. (“PCC”) for many years prior to December 28, 2016. On that date they sold their interest in the company to Mr. Dirk Griffin. Following the purchase of the company by Mr. Griffin, PCC has continued to bid on projects with the Los Angeles
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	Unified School District and is currently performing several major projects for the District. [¶] I am writing to you because a dispute has arisen between the Pinnars and Mr. Griffin that may result in a change of ownership at PCC. If you are not already aware of this dispute, I am enclosing a copy of the complaint filed by the Pinnars against Mr. Griffin in Case No. 30-2022-01288013-CU-BC-CJC now pending in Orange County Superior Court. The Pinnars are alleging that Mr. Griffin has failed to pay the balance of approximately \$4,480,000 still owed to them in connection with his purchase of the company, and they are seeking rescission of the contract of sale based on his failure to do so. If the Pinnars prevail in the lawsuit, they will resume ownership of the company. [¶] The purpose of this letter is to assure the District that any change of ownership resulting from the lawsuit will be handled in a way that does not affect PCC’s operations or the performance of any ongoing contracts between PCC and the District. If the District has any concerns about the lawsuit, we would be happy to address them.” (Edwards Decl., Exhibit 2.) Defendant Edwards declares the following: “I sent the Letter to Mr. Hovatter in furtherance of the claim for rescission that the Pinnars were asserting against Griffin in the Pinner-Griffin Lawsuit. I was concerned that LAUSD may treat a change in PCC’s ownership as an event of default under PCC’s ongoing contracts with LAUSD or remove PCC from its list of prequalified bidders on future LAUSD projects if the Pinnars prevail on their claim for rescission. The Pinnars wanted to find out how LAUSD would respond to a change in ownership and attempt to address any concerns that LAUSD might have about such a change before proceeding further with their lawsuit. This question was somewhat urgent because I was beginning to prepare a motion for
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